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8835

THE WHITE HOUSE
WASHINGTON

DECLASSIFIED
PER E.O. 13526

2009-0740-MR
SS 10/16/12

MEMORANDUM OF TELEPHONE CONVERSATION

SUBJECT: Telecon with President Francois Mitterrand
of France on December 3, 1992

PARTICIPANTS: The President
President Francois Mitterrand
Interpreter: None
Notetaker: Tony Wayne

DATE, TIME: December 3, 1992, 8:14-8:23 a.m.
AND PLACE: The Oval Office

The President: Francois, Comment allez-vous? (U)

President Mitterrand: Fine, George. I'm happy to hear your voice. I am hoping that we will be able to talk often in the future. (U)

The President: Yes, but you know I will only be employed for another forty-six days. (U)

President Mitterrand: We'll, it is not only work that will bring us together. (U)

The President: You're right. I might even make a little suggestion in that regard. I'd like to have you come to Camp David, perhaps for a week-end in early January. We could have a relaxing talk. (U)

President Mitterrand: Yes, let's talk about that, let's look at the possibilities. (U)

The President: Good, I'll ask General Scowcroft to follow-up with your people on the possibility and the details. It will be very nice if it works out. We could spend some time talking informally as friends. Now, may I take a moment to talk about Somalia? (U)

President Mitterrand: Yes, by all means. That is the subject of the day. (U)

The President: Now that Boutros Ghali has provided his views to the Security Council, it is time to act. As I said in my November 28 message, the situation in Somalia has reached a crisis point. The core issue is security, as the Secretary General pointed out in his report to the Security Council. Despite the UN's best efforts they have been unable to secure local permission to deploy enough troops to do the job.

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The United States is proposing to form an international coalition under UN auspices to establish a peacemaking force. This would be a peacemaking force, not a peacekeeping force. It is needed to bring the warlords under control -- we don't expect that to be hard -- and to get the relief operation off the ground and running the way it should. They would then turn over the task of maintaining this newly established secure environment to a regular UN peacekeeping force. We are willing to make a major contribution to this effort. I can't say how much that will be yet. We are having a big meeting today with Secretary Cheney, Colin Powell and others to decide that. I want to underline here, Francois, that we are very conscious of the contribution which France is currently making to UN peacekeeping around the world. But I hope that you will actively support this concept and work with us to make it a reality. As always, France's leadership will be vital. We can leave this for you to think about, or I'd be happy to hear your immediate reaction. (Ø)

President Mitterrand: I can answer you right away. Certainly there are some inconvenient points to this, but there are also duties. We are ready to send an expeditionary corps together with the American troops. (Ø)

The President: That is great. That is as clear and good an answer as I could have expected. (Ø)

President Mitterrand: I am not sure of the numbers or of how we would work this out, but I am thinking of perhaps 2000 troops. Of course, we haven't reviewed this in detail. (Ø)

The President: That would be a significant and wonderful contribution. It doesn't surprise me, but it pleases me very much. (Ø)

President Mitterrand: Now you have our answer. Our assistants and aides must now work out the details. They are not all easy to solve. (Ø)

The President: Yes, they should be in touch. We must also make our decision today on the size of our contribution, and we will be in contact. (Ø)

President Mitterrand: We must also decide on a timetable and avoid becoming bogged down. (Ø)

The President: I agree fully. We want the peacemaking forces out fast. I do not want to bog our new president down with a military force in place. We think this can happen quickly. (Ø)

President Mitterrand: Yes, I have the same reaction as you. The U.S. effort is important, and we are happy to join this effort. (Ø)

The President: We will be in touch on this and on the possible visit. I hope it works out. (Ø)

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President Mitterrand: Please give my best to Barbara. I look forward to seeing you both. I have the highest regard for you. From time-to-time we saw things differently, but I always thought that your decisions were done perfectly. (U)

The President: Thank you. You're a joy to work with. (U)

President Mitterrand: See you soon. (U)

The President: Good bye, my friend. (U)

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→ To Bill O'Leary

CERTIFICATION

CHRON FILE

Earl Anthony Wayne certifies that he/she has searched his/her files for documents in compliance with the instructions circulated on behalf of the Executive Secretary and:

(check one)

☒

No such documents were found.

Any responsive documents have been provided to the Legal Adviser's Office via the Records Management staff.

I hereby declare under the penalty of perjury that the foregoing is true and correct.

Date:

Dec 7 1992

Earl Anthony Wayne

I was on leave December 5 and none else cited on this. However, I have today again reviewed our study files, which is the only place I might have misrelated documents + found none of the subjects requested (in addition to those already submitted for an earlier search).

Earl A Wayne

December 3, 1992

ACTION

MEMORANDUM FOR JIM PAVITT
MIKE WAGUESPACK
ERIC MELBY
RICHARD BARTH
BILL PRIMOSCH
NANCY MENAN
FLORENCE GANTT
WILMA HALL
DONA PROCTOR
KRIS CICIO
ELLEN TANNER
NICHOLAS ROSTOW
DAVID GOMPERT
TONY WAYNE
BARRY LOWENKRON
RICHARD HAASS
BRUCE RIEDEL
EDMUND HULL

FROM

WILLIAM F. SITTMANN 

SUBJECT:

Independent Counsel's Request for Documents

ACTION DUE BY 4:00 P.M., SATURDAY, DECEMBER 5

On December 2, 1992, the NSC received requests for documents from Judge Frederick B. Lacey, appointed by Attorney General William Barr to investigate various issues related to the prosecution of Christopher Drogoul and others in what is referred to as the Banca Nazionale del Lavoro (BNL) matter. (See attachments A and B.)

First, Judge Lacey requests documents related to BNL which we have already gathered from NSC files for previous requests. His staff was provided access to those documents on December 2, 1992.

Second, Judge Lacey asks that the NSC provide access to documents reflecting shipments of military equipment to Iraq, limited to any NSC documents reflecting shipments of dual-use items to Iraq for the dates January 1, 1986 through August 4, 1989.

Third, he requests access to documents which relate to the Iraqi military procurement network, limited to documents relating to the following entities for the dates January 1, 1987 through January 1, 1991:

Matrix-Churchill Ltd.
Matrix-Churchill Corp.
TDG
Technology and Development Group Ltd.
TDG, Inc.
TMG Engineering
TMG
New Cast Foundry Ltd.

Fourth, he requests access to documents dating from 1985 to December 2, 1992 relating to the following individuals:

Christopher Drogoul
Safa Haji J. Al-Habobi
Raja Hassan Ali

Please search your files to determine whether or not you have any documents relating to the above-described terms. (Records Management will search the central files.) Judge Lacey's staff has requested access to any responsive documents no later than close of business, Saturday, December 5, 1992. Therefore, you must conduct your search at once and report your findings to Bill Leary by **4:00 p.m. on Saturday**. Once you have located responsive documents, please forward a copy of those documents to Bill Leary with a certification that you have conducted a thorough and complete search. (See attached certification.) If you do **not** find responsive documents, please so indicate on the certification and send it to Bill Leary by 4:00 p.m. on Saturday. If you have any questions, please contact Martha Hill **today** at x1580.

Attachments

Tab A Letter from Judge Lacey dated 12/2/92
Tab B Supplemental Letter from Judge Lacey
Tab C Certification

LEBOEUF, LAMB, LEIBY & MACRAE

A PARTNERSHIP INCLUDING PROFESSIONAL CORPORATIONS

EASTERN U.S.A.:

NEW YORK, NY
WASHINGTON, DC
ALBANY, NY
BOSTON, MA
HARRISBURG, PA
HARTFORD, CT
NEWARK, NJ

125 WEST 55TH STREET
NEW YORK, NY 10019-4513

(212) 424-8000

FACSIMILE: (212) 424-8500

TELEX: 423416 (OR) 1561363

EUROPEAN COMMUNITY: BRUSSELS, BELGIUM AND LONDON, ENGLAND

RUSSIAN FEDERATION: MOSCOW

DIRECT DIAL

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December 2, 1992

VIA HAND DELIVERY

National Security Council
The White House
Washington, D. C. 20500

Re: BNL Investigation

Dear Sirs and Madams:

I write as Independent Counsel under appointment by Attorney General William P. Barr pursuant to 28 CFR Part 600 to investigate various issues related to the prosecution of Christopher Drogoul and others in what is referred to as the Banca Nazionale del Lavoro ("BNL") matter.

I have been advised that you require this letter specifying the documents to which I need access and the people on my staff who will review them (including their security classification). That information follows:

Documents

1. Those referring to BNL from January 1, 1985, to December 1, 1992;
2. Those reflecting shipments of military equipment to Iraq;
3. Those relating to the Iraqi military procurement network from 1985 to date;
4. Those relating to Christopher Drogoul, Safa Haji J. Al-Habobi and Raja Hassan Ali from 1985 to date;

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WESTERN U.S.A.:

LOS ANGELES, CA
SALT LAKE CITY, UT
SAN FRANCISCO, CA

SOUTHERN U.S.A.:

JACKSONVILLE, FL
RALEIGH, NC

Determined NOT to be
National Security Classified Marking
By MB (NLGB) on 7/13/11

Withdrawal/Redaction Sheet

(George Bush Library)

Document No. and Type	Subject/Title of Document	Date	Restriction	Class.
07a. Letter	To: National Security Council From: Frederick Lacey Re: BNL Investigation (1 pp.)	12/2/92	(b)(6)	

Collection:

Record Group: Bush Presidential Records
Office: National Security Council
Series: European / Eurasian Directorate Central Chron File
Subseries:
WHORM Cat.:
File Location: December 1992 [4]

Date Closed: 7/13/2011	OA/ID Number: 30531-004
FOIA/SYS Case #: 2011-0002-F	Appeal Case #:
Re-review Case #:	Appeal Disposition:
P-2/P-5 Review Case #:	Disposition Date:
AR Case #:	MR Case #:
AR Disposition:	MR Disposition:
AR Disposition Date:	MR Disposition Date:

RESTRICTION CODES

Presidential Records Act - [44 U.S.C. 2204(a)]

P-1 National Security Classified Information [(a)(1) of the PRA]
P-2 Relating to the appointment to Federal office [(a)(2) of the PRA]
P-3 Release would violate a Federal statute [(a)(3) of the PRA]
P-4 Release would disclose trade secrets or confidential commercial or financial information [(a)(4) of the PRA]
P-5 Release would disclose confidential advice between the President and his advisors, or between such advisors [(a)(5) of the PRA]
P-6 Release would constitute a clearly unwarranted invasion of personal privacy [(a)(6) of the PRA]

C. Closed in accordance with restrictions contained in donor's deed of gift.

PRM. Removed as a personal record misfile.

Freedom of Information Act - [5 U.S.C. 552(b)]

(b)(1) National security classified information [(b)(1) of the FOIA]
(b)(2) Release would disclose internal personnel rules and practices of an agency [(b)(2) of the FOIA]
(b)(3) Release would violate a Federal statute [(b)(3) of the FOIA]
(b)(4) Release would disclose trade secrets or confidential or financial information [(b)(4) of the FOIA]
(b)(6) Release would constitute a clearly unwarranted invasion of personal privacy [(b)(6) of the FOIA]
(b)(7) Release would disclose information compiled for law enforcement purposes [(b)(7) of the FOIA]
(b)(8) Release would disclose information concerning the regulation of financial institutions [(b)(8) of the FOIA]
(b)(9) Release would disclose geological or geophysical information

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5. Those relating to the United States foreign policy toward Iraq from 1980 through 1990.

(b)(6)

Very truly yours,

Frederick B. Lacey
Frederick B. Lacey

Bush Presidential Library Photocopy

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Determined NOT to be
National Security Classified Marking
By MB (NLGB) on 7/13/11

LEBOEUF, LAMB, LEIBY & MACRAE

A PARTNERSHIP INCLUDING PROFESSIONAL CORPORATIONS

EASTERN U.S.A.:

NEW YORK, NY
WASHINGTON, DC
ALBANY, NY
BOSTON, MA
HARRISBURG, PA
HARTFORD, CT
NEWARK, NJ

125 WEST 55TH STREET
NEW YORK, NY 10019-4513

(212) 424-8000

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TELEX: 423416 (OR) 1561363

EUROPEAN COMMUNITY: BRUSSELS, BELGIUM AND LONDON, ENGLAND

RUSSIAN FEDERATION: MOSCOW

DIRECT DIAL

December 2, 1992

WESTERN U.S.A.:

LOS ANGELES, CA
SALT LAKE CITY, UT
SAN FRANCISCO, CA

SOUTHERN U.S.A.:

JACKSONVILLE, FL
RALEIGH, NC

VIA FACSIMILE

National Security Council
The White House
Washington, D.C. 20500

Re: BNL Investigation

Dear Sirs and Madams:

This supplements my letter to you of this morning.

Document request 1 is limited to those documents which the NSC has searched.

Document request 2 is limited to any NSC documents reflecting shipments of dual-use items to Iraq for the dates 1/1/86 through 8/4/89.

Document request 3 is limited to the documents relating to the following entities for the dates January 1, 1987 through January 1, 1991:

Matrix-Churchill Ltd.
Matrix-Churchill Corp.
TDG
Technology and Development Group Ltd.
TDG, Inc.
TMG Engineering
TMG
New Cast Foundry Ltd.

Document request 5 is withdrawn.

In addition, the following individuals should be added to the list of people on my staff who will review these documents.

Withdrawal/Redaction Sheet

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Document No. and Type	Subject/Title of Document	Date	Restriction	Class.
07b. Letter	To: National Security Council From: Frederick Lacey Re: BNL Investigation (1 pp.)	12/2/92	(b)(6)	

Collection:

Record Group: Bush Presidential Records
Office: National Security Council
Series: European / Eurasian Directorate Central Chron File
Subseries:
WHORM Cat.:
File Location: December 1992 [4]

Date Closed: 7/13/2011	OA/ID Number: 30531-004
FOIA/SYS Case #: 2011-0002-F	Appeal Case #:
Re-review Case #:	Appeal Disposition:
P-2/P-5 Review Case #:	Disposition Date:
AR Case #:	MR Case #:
AR Disposition:	MR Disposition:
AR Disposition Date:	MR Disposition Date:

RESTRICTION CODES

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National Security Council
December 2, 1992
Page 2

(b)(6)

Very truly yours,

Frederick B. Lacey
Frederick B. Lacey

Withdrawal/Redaction Sheet

(George Bush Library)

Document No. and Type	Subject/Title of Document	Date	Restriction	Class.
08a. Memorandum	To: Brent Scowcroft From: Nicholas Burns Re: Transition Papers on the Former Soviet Union (1 pp.)	12/4/92	(b)(1)	S

Collection:

Record Group: Bush Presidential Records
Office: National Security Council
Series: European / Eurasian Directorate Central Chron File
Subseries:
WHORM Cat.:
File Location: December 1992 [4]

Date Closed: 7/13/2011	OA/ID Number: 30531-004
FOIA/SYS Case #: 2011-0002-F	Appeal Case #:
Re-review Case #:	Appeal Disposition:
P-2/P-5 Review Case #:	Disposition Date:
AR Case #:	MR Case #:
AR Disposition:	MR Disposition:
AR Disposition Date:	MR Disposition Date:

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Withdrawal/Redaction Sheet

(George Bush Library)

Document No. and Type	Subject/Title of Document	Date	Restriction	Class.
08b. Paper	General US Policy Issues with the New States of the Former Soviet Union (5 pp.)	n.d.	(b)(1)	S

Collection:

Record Group: Bush Presidential Records
Office: National Security Council
Series: European / Eurasian Directorate Central Chron File
Subseries:
WHORM Cat.:
File Location: December 1992 [4]

Date Closed: 7/13/2011	OA/ID Number: 30531-004
FOIA/SYS Case #: 2011-0002-F	Appeal Case #:
Re-review Case #:	Appeal Disposition:
P-2/P-5 Review Case #:	Disposition Date:
AR Case #:	MR Case #:
AR Disposition:	MR Disposition:
AR Disposition Date:	MR Disposition Date:

RESTRICTION CODES

Presidential Records Act - [44 U.S.C. 2204(a)]

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Withdrawal/Redaction Sheet

(George Bush Library)

Document No. and Type	Subject/Title of Document	Date	Restriction	Class.
08c. Paper	Specific Policy Issues Pertaining to the Former Soviet Union (6 pp.)	n.d.	(b)(1)	S

Collection:

Record Group: Bush Presidential Records
Office: National Security Council
Series: European / Eurasian Directorate Central Chron File
Subseries:
WHORM Cat.:
File Location: December 1992 [4]

Date Closed: 7/13/2011	OA/ID Number: 30531-004
FOIA/SYS Case #: 2011-0002-F	Appeal Case #:
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AR Disposition:	MR Disposition:
AR Disposition Date:	MR Disposition Date:

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Significant Upcoming Events in the Former Soviet Union

December 1992

- 15th The Paris Club Consultative Group meets to discuss rescheduling the debt of the Former Soviet Union, estimated at approximately \$75 billion: the agreement is based on Russia assuming the debt of the former USSR and will include a grace period on payments of principle;
- 15-18th U.S.-Russian Joint Commission on POW/MIAs meets in Moscow: Ambassador Toon and Congressional representatives will conduct on-site inspections, meet with senior Russian officials, and review research efforts on American POWs; the group will also conduct preliminary talks in Ukraine on the possibility of establishing a bilateral joint commission;
- 17-19th Russian President Yeltsin visits China to open negotiations on a friendship treaty -- the first bilateral treaty since the 1950s -- which would include arms and technology sales, force reductions, and economic and cultural relations;
- 25th CIS Summit in Minsk, Belarus will review a draft charter on the Commonwealth structure and purpose, as well as multilateral economic issues.

January 1993 Ukrainian Supreme Soviet convenes: START and Non-Proliferation (NPT) treaties, if not ratified in December, will be debated in the legislature.

February 1993 CIS Heads of State Summit (agenda and date to be determined);

14th Russian President Yeltsin meets with Estonian President Meri to negotiate Russian troop withdrawals and the rights of ethnic Russians currently living in Estonia;

Lithuania may hold presidential elections: Newly elected Acting President Brazauskas is likely to face challenge by former Supreme Council Chairman Landsbergis.

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By SS NARA, Date 1/7/86

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2

March 1993

U.S. Bilateral Tax Treaty negotiations resume with Ukraine and Kazakhstan;

Belarus-IBRD negotiations: agenda includes discussion of a \$100 million rehabilitation loan and a \$25 million institution-building loan.

Other expected events in early 1993:

The IMF and Russia will resume negotiations toward a Standby Agreement;

Russian request for additional CCC credit guarantees: because currently allocated U.S. loan guarantees will extend only through late March 1993, a request from the Russians for further credits is likely in January-February;

Russian Defense Minister Grachev plans to visit Washington to review bilateral military contacts and discuss regional defense issues, as well as tour U.S. facilities;

CIS Commander-in-Chief Shaposhnikov plans to visit the United States to discuss nuclear forces;

First U.S.-Russian Joint Defense Staff Talks: Both sides have agreed to meet in early 1993 to initiate exchange of force deployment information and examine world security situation.

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Originally Processed With FOIA(s):
2011-0002-F

FOIA Number:
2011-0002-F

FOIA MARKER

**This is not a textual record. This is used as an
administrative marker by the George Bush Presidential
Library Staff.**

Record Group/Collection: George H.W. Bush Presidential Records
Collection/Office of Origin: National Security Council
Series: European and Eurasian Directorate
Subseries: Central Chronological Files

OA/ID Number: 30531
Folder ID Number: 30531-004

Folder Title:
December 1992 [4]

Stack:	Row:	Section:	Shelf:	Position:
V	0	0	0	0
